

SCA Minhag of the Week #70:
LIGHTING CANDLES ON 'EREB KIPPUR
by Morris Arking

In the fourth chapter of Masekhet Pesahim the Mishnah taught that candles are lit (at home) for the night of Yom Kippur in a place where it is customary to do so, but that where it is customary not to light candles (at home) for the night of Yom Kippur, candles are not lit. The Gemara (Pesahim 53b) adds that both customs have the same intention. The Tosefta (Pesahim 3:11) specifies that the intention was to prevent one from coming to sin. And the Ri"ף (end of Masekhet Pesahim) explains that the sin that they intended to prevent was marital relations (which is one of five prohibitions that are part of the observance of Yom Kippur). Similarly HaRambam wrote (Mishneh Torah Hil. Sh'bitat 'Asor 3:10) that in some places it was customary to light candles for the night of Yom Kippur so that a man will not come to have relations with his wife (see Mishneh Torah Hil. Isure' Bi-ah 21:10 that prohibits marital relations in an illuminated room), and in some places it was customary not to light candles for the night of Yom Kippur since one might see his wife and become attracted to her and that might lead to marital relations. Rabenu Hananel and Rashi also explain the Gemara like HaRambam and the Ri"ף based on the Tosefta.

This led the Mordekhi to write (Pesahim 609) that a blessing should not be recited upon the lighting of candles on 'Ereb Yom Kippur, since it is a custom (not a Rabbinic obligation), and the Gemara (Sukkah 44b) taught that a blessing is not recited upon a custom. This position is also found in the Orhot Hayyim (Hil. Yom HaKippurim 25) the MaHaRi"l (Hil. 'Ereb Kippur), the Radbaz (Heleq Gimal 476), and the Piske' MaHaRam Riquanti (164). However other authorities do require one to recite the blessing upon lighting candles for Kippur. These authorities include the Rosh (Yoma 8:27), the Tur (OH 610) and Rabenu Yerusham (Netiv Zayin Heleq Alef).

In OH 6:10 Maran wrote, "There is one who says to recite a blessing upon lighting candles for Yom HaKippurim". But in OH 263:5 Maran wrote, "On 'Ereb Yom HaKippurim, when it (Kippur) doesn't fall on Shabbat, there is one who says not to recite a blessing upon lighting the candles and examine (what is written) later in Siman 610". The Shulhan Gaboha (610:5) understood Maran as taking the position that one should not recite a blessing, but Hakham 'Obadyah Yosef A"H disagreed with the Shulhan Gaboha and explained Maran as requiring a blessing (Hazon 'Obadyah-Yamim Noraim pgs. 257-259)

According to the RaM"A (OH 610:3) the Ashkenazic custom is to recite a blessing before lighting the candles on 'Ereb Kippur, however the G"RA applied the rule of Safeq B'rakhot L'Haqel (one is lenient and does not recite a B'rakhah in case of a doubt) to the disagreement between the Rishonim with regards to whether or not a blessing is recited before lighting candles on 'Ereb Kippur and concluded that the blessing is not recited. Sephardic authorities who ruled not to recite the blessing based on Safeq B'rakhot L'Haqel include the MaHaRi"QaS, the P'ri Hadash the 'Erekh HaShulhan (all in OH

610)and R Yishaq Palaji in Y'feh L'Leb (Heleq Bet) based on his father R Hayyim Palaji in Ruah Hayyim.

Hakham 'Obadyah Yosef A"H did not apply the rule of Safeq B'rakot L'Haqel in this case since he considered it customary to recite the blessing, and the rule of Safeq B'rakhot L'Haqel is not applied when there is an established custom to recite a blessing. He considered it customary to recite the blessing upon the candles on 'Ereb Kippur based on the Ben Ish Hai (VaYelekh 9), the Kaf HaHayyim (OH 610:12), the P'ri M'gadim(Ot Alef), the Hayye' Adam (144:14) and others. However the established custom in Halab was that those that lit candles at home on 'Ereb Kippur did so without reciting a blessing. Derekh Eress (published in 1990) quotes this from Hakham Yishaq Shehebar's summary of laws (published in Spanish) and from Hakham Yishaq Za'afarani (pg. 124(6) and pg. 194 (98). Furthermore Hakham Abraham Hamway (19th century) applied the rule of Safeq B'rakhot L'Haqel to the candles for Yom Kippur (Bet HaKaporet-Hadlaqat HaNer 17,9) and concluded that a blessing should not be recited before lighting.

What about reciting the blessing upon lighting the candles on 'Ereb Kippur when Kippur falls on Shabbat? With regards to this case the Mordekhi brought two opinions. He quoted Rabbenu Yishaq who said that even though you do not recite a blessing before lighting the candles on 'Ereb Kippur when it falls on a weekday, when it falls on Shabbat you do recite a blessing. Then he quoted Sefer HaMisvot who said that even when Kippur falls on Shabbat you light without a blessing since the candles in this case are not for eating the meal like they are on a regular Shabbat. Likewise the Radbaz also wrote that even when Kippur falls on Shabbat the candles are lit without a blessing since you do not eat with the light of the candles. But from HaRambam who wrote (Mishneh Torah Hil. Sh'bitat 'Asor 3:10) that when Kippur falls on Shabbat everyone is obligated to light candles because lighting a candle for Shabbat is an obligation, it seems that one must recite the blessing, since it is an obligation and it is not dependant upon local custom. Also Maran in Shulhan 'Arukh (quoted above OH 263:5) only suggested not reciting the blessing when Kippur didn't fall on Shabbat. Still in all Hakham Abraham Hamway concluded that even when Kippur falls on Shabbat a blessing is not recited since it is still a matter of disagreement among the authorities and the rule of Safeq B'rakhot L'Haqel still applies.

Lastly our community custom of lighting candles on 'Ereb Kippur without a blessing was recorded in our Kol Yaakov Siddur in the 2009 printing on the bottom of page 526. There it states that the custom of Aram Soba is not to recite a blessing upon the candles for Yom Kippur. It is stated plainly without differentiating between Kippur that falls on a weekday and Kippur that falls on Shabbat. This is consistent with Hakham Abraham Hamway's conclusion in his Mahzor Bet HaKaporet.